

**BEFORE THE STATE OF FLORIDA
DEPARTMENT OF ENVIRONMENTAL PROTECTION**

**STATE OF FLORIDA
DEPARTMENT OF ENVIRONMENTAL
PROTECTION**

**IN THE DIVISION OF
WATER RESOURCE
MANAGEMENT**

Complainant,

OGC FILE NO. 25-1721

vs.

**NORTH FLORIDA ROCK, LLC,
d/b/a ARCOSA AGGREGATES,**

Respondent.

_____ /

CONSENT ORDER

This Consent Order (“Order”) is entered into between the State of Florida Department of Environmental Protection (“Department”) and North Florida Rock, LLC. (“North Florida Rock”), doing business as Arcosa Aggregates (“Arcosa”), (“Respondent”) to reach settlement of certain matters at issue between the Department and the Respondent.

The Department finds and Respondent admits the following:

1. The Department is the administrative agency of the State of Florida having the power and duty to protect Florida’s air and water resources and to administer and enforce the provisions of Chapters 373, 378, and 403, Florida Statutes (“F.S.”), and the rules promulgated in Title 62, Florida Administrative Code (“F.A.C.”). The Department has jurisdiction over the matters addressed in this Order.

2. Respondent, North Florida Rock is a Florida for-profit corporation, doing business as Arcosa Aggregates, which operates a limestone mine commonly known as the Marianna Mine (“Facility”). The Facility is located in Jackson County, on real property described as Parcel Numbers 19-3N-09-0000-0030-0010, 20-3N-09-0000-0070-0000, 20-3N-09-0000-0080-0000, and 30-3N-09-0000-0010-0000. The Department has assigned Site Number MMR_173508 to the Facility.

3. Respondent owns the real property comprising the Facility.

4. Respondent is a “person” within the meaning of sections 376.301(29) and 403.031(5),

F.S.

5. On June 14, 2024, the Department conducted a file review and inspection at the Facility. The Department determined that Respondent failed to obtain a permit before dredging or filling in, on, or over wetlands or other surface waters at the Facility, in violation of Section 373.413(2), F.S., and Rule 62-330.020(2)(a), F.A.C. The direct impacts to wetlands consist of approximately 0.13 acres of mixed hardwood wetland, and secondary impacts to Wetland F consisting of approximately 18.77 acres totaling 9.47 Functional Loss units under the Uniform Mitigation Assessment Method.

6. In addition, to conducting operations in the area described above without authorization from the Department, the Respondent failed to satisfy several specific conditions of its Environmental Resource Permit, MMR_173508-003 (Permit), within the required timeframes, specifically: failure to record a conservation easement, failure to complete required mitigation failure to satisfy financial responsibility requirements, failure to prepare, submit, maintain, or use required reports or other required documentation, and failure to construct in compliance with the permit, in violation of Section 373.430(1)(b), F.S., Rule 62-330.350(1)(a), F.A.C., and Section 403.161(1)(b), F.S.

7. The offsite mitigation plan under the original Permit consisted of 44.18 acres of mitigation totaling 8.84 Functional Gain units under the Uniform Mitigation Assessment Method. However, on May 30, 2024, Respondent transferred the offsite mitigation property. The Respondent did not notify the Department of the transfer and Respondent cannot complete the offsite mitigation as required by the Permit.

8. On October 7, 2024, the Department issued a Compliance Assistance Offer (CAO) Letter for impacts to onsite wetlands as well as failure to satisfy several specific conditions of the Permit within the required timeframe.

9. On October 2, 2025, the Respondent submitted an Environmental Resource Permit application to modify the existing permit to include the unauthorized areas. However, after review of the application files, the Department determined that the Respondent modified the design of the already constructed stormwater management system in the location labeled storage and laydown area, without prior authorization in violation of section 373.413(2), F.S., and Rule 62-330.020(2), F.A.C., and Section 403.161(1)(b), F.S.

Having reached a resolution of the matter Respondent and the Department mutually agree

and it is

ORDERED:

10. Respondent shall maintain site access and afford site access to the Department throughout the Facility until all terms of the Order have been satisfied.

11. Respondent shall comply with the following corrective actions within the stated time periods:

- a. Respondent shall immediately cease all mining related activities in wetlands and other surface waters outside the permitted and authorized boundaries under the current Permit for impact at the Facility until proper authorization is obtained.
- b. Within 90 days of the effective date of this Order, Respondent shall provide proof of purchase of 7.61 forested in-kind credits from the Bear Creek Mitigation Bank and 15.89 wet prairie/flatwoods out-of-kind mitigation bank credits from the Bear Creek Mitigation Bank. After confirmation of receipt of the proof of purchase by the Department, Respondent may cease the Wetland Hydrological and Vegetative Monitoring of the avoided wetland. Purchase of the credits under this paragraph will satisfy the mitigation for wetland impacts required under the Permit.
- c. Respondents shall immediately install all required Best Management Practices ("BMPs") and stormwater management features to ensure erosion control or containment of stormwater on site during future operations, as required under the current Permit. Upon completion of the installation of BMPs and stormwater management features at the Facility, Respondents shall arrange an inspection with the Department and submit photo documentation of completed activities.
- d. Within in one (1) year of the effective date of this Order, Respondent shall provide a conservation easement over the 18.9 acres of avoided wetlands described under specific condition 9 of the Permit, or in the alternative obtain a permit modification removing or altering the requirement. Respondent may impact wetlands notwithstanding the requirement under the specific condition 9 of the Permit in accordance with this Order. This is only applicable to state ERP requirements and does not waive or reduce any obligations of Respondent under Section 404 of the Clean Water Act.

- e. Respondent may continue to use the storage and laydown area. This area should be identified and included in any future permit modification.

12. Within 30 days of the Effective Date of this Order, Respondent shall pay the Department \$20,500.00 in settlement of the regulatory matters addressed in this Order in accordance with the procedure set forth in Paragraph 13. This amount includes \$20,000.00 for civil penalties and \$500.00 for costs and expenses incurred by the Department during the investigation of this matter and the preparation and tracking of this Order. The civil penalties are apportioned as follows:

- a. \$4,500.00 for violation of Rule 62-330.020(2), F.A.C., Section 373.413(2), F.S., and Section 403.161(1)(b), F.S., for failure to obtain a required permit before construction or modification.
- b. \$11,000.00 for violation of Rule 62-330.020(2), F.A.C., Section 373.413(2), F.S., and Section 403.161(1)(b), F.S., for unpermitted/unauthorized dredging/filling of wetlands or other surface waters.
- c. \$4,500.00 for violation of Rule 62-330.350(1)(a), F.A.C., Section 373.430(1)(b), F.S., and Section 403.161(1)(b), F.S. for failure to comply with its Permit.

13. Respondent shall make all payments required by this Order by cashier's check, money order, or on-line payment. Cashier's check or money order shall be made payable to the "Department of Environmental Protection" and shall include both the OGC number assigned to this Order (25-1721) and the notation "Water Quality Assurance Trust Fund." Online payments by e-check can be made by going to the DEP Business Portal at: <http://www.fldepportal.com/go/pay/>. It will take a number of days after this order becomes final, effectively, and filed with the Clerk of the Department before ability to make online payment is available.

14. Except as otherwise provided, all submittals and payments required by this Order shall be sent to Marisa Rhian, Program Administrator, Department of Environmental Protection, Mining and Mitigation Program, 2600 Blair Stone Road, MS 3577, Tallahassee, Florida 32399, MiningAndMitigation@FloridaDEP.gov.

15. Respondent shall allow all authorized representatives of the Department access to the Facility at reasonable times upon reasonable notice to Respondents for the purpose of determining compliance with the terms of this Order and the rules and statutes administered by the Department.

16. In the event of a sale or conveyance of the Facility or of the Property upon which the Facility is located, if all of the requirements of this Order have not been fully satisfied, Respondent

shall, at least 30 days prior to the sale or conveyance of the Facility or Property, (a) notify the Department of such sale or conveyance, (b) provide the name and address of the purchaser, operator, or person(s) in control of the Facility, and (c) provide a copy of this Order with all attachments to the purchaser, operator, or person(s) in control of the Facility. The sale or conveyance of the Facility or Property does not relieve Respondents of the obligations imposed in this Order.

17. If any event, including administrative or judicial challenges by third parties unrelated to Respondent, occurs which causes delay or the reasonable likelihood of delay in complying with the requirements of this Order, Respondent shall have the burden of proving the delay was or will be caused by circumstances beyond the reasonable control of Respondents and could not have been or cannot be overcome by Respondent's due diligence. Neither economic circumstances nor the failure of a contractor, subcontractor, materialman, or other agent (collectively referred to as "contractor") to whom responsibility for performance is delegated to meet contractually imposed deadlines shall be considered circumstances beyond control of Respondents (unless the cause of the contractor's late performance was also beyond the contractor's control). Upon occurrence of an event causing delay, or upon becoming aware of a potential for delay, Respondent shall notify the Department by the next working day and shall, within seven calendar days, notify the Department in writing of (a) the anticipated length and cause of the delay, (b) the measures taken or to be taken to prevent or minimize the delay, and (c) the timetable by which Respondents intends to implement these measures. If the parties can agree that the delay or anticipated delay has been or will be caused by circumstances beyond the reasonable control of Respondent, the time for performance hereunder shall be extended. The agreement to extend compliance must identify the provision or provisions extended, the new compliance date or dates, and the additional measures Respondent must take to avoid or minimize the delay, if any. Additionally, the Department may agree to extend the time for performance under the provision or provisions of this Order for any reason, such as good faith by the Respondent. Failure of Respondent to comply with the notice requirements of this paragraph in a timely manner constitutes a waiver of Respondent's right to request an extension of time for compliance for those circumstances.

18. The Department, for and in consideration of the complete and timely performance by Respondent of all the obligations agreed to in this Order, hereby conditionally waives its right to seek judicial imposition of damages or civil penalties for alleged violations up to the date of the filing of this Order. This waiver is conditioned upon respondents' complete compliance with all of the terms

of this Order.

19. This Order is a settlement of the Department's civil and administrative authority arising under Florida law to resolve the matters addressed herein. This Order is not a settlement of any criminal liabilities which may arise under Florida law, nor is it a settlement of any violation which may be prosecuted criminally or civilly under federal law. Entry of this Order does not relieve Respondent of the need to comply with applicable federal, state, or local laws, rules, or ordinances.

20. The Department hereby expressly reserves the right to initiate appropriate legal action to prevent or prohibit any violations of applicable statutes or rules promulgated thereunder that are not specifically addressed by terms of this Order.

21. Respondent is fully aware that a violation of the terms of this Order may subject Respondents to judicial imposition of damages, civil penalties up to \$15,000 per day per violation, and criminal penalties.

22. Respondent acknowledges and waives its right to an administrative hearing pursuant to Sections 120.569 and 120.57, F.S., on the terms of this Order. Respondents also acknowledges and waives its right to appeal the terms of this Order pursuant to Section 120.68, F.S.

23. Electronic signatures or other versions of the parties' signatures, such as .pdf or facsimile, shall be valid and have the same force and effect as originals. No modifications of the terms of this Order will be effective until reduced to writing, executed by both Respondent and the Department, and filed with the clerk of the Department.

24. The terms and conditions set forth in this Order may be enforced in a court of competent jurisdiction pursuant to Sections 120.69 and 403.121, F.S. Failure to comply with the terms of this Order constitutes a violation of Section 403.161(1)(b), F.S.

25. This Consent Order is a final order of the Department pursuant to Section 120.52(7), F.S., and it is final and effective on the date filed with the Clerk of the Department unless a Petition for Administrative Hearing is filed in accordance with Chapter 120, F.S. Upon the timely filing of a petition, this Consent Order will not be effective until further order of the Department.

26. Persons who are not parties to this Consent Order, but whose substantial interests are affected by it, have a right to petition for an administrative hearing under Sections 120.569 and 120.57, Florida Statutes. Because the administrative hearing process is designed to formulate final agency action, the filing of a petition concerning this Consent Order means that the Department's final action may be different from the position it has taken in the Consent Order. The petition for administrative hearing must contain all

of the following information:

- a. The OGC Number assigned to this Consent Order;
- b. The name, address, and telephone number of each petitioner; the name, address, and telephone number of the petitioner's representative, if any, which shall be the address for service purposes during the course of the proceeding;
- c. An explanation of how the petitioner's substantial interests will be affected by the Consent Order;
- d. A statement of when and how the petitioner received notice of the Consent Order;
- e. Either a statement of all material facts disputed by the petitioner or a statement that the petitioner does not dispute any material facts;
- f. A statement of the specific facts the petitioner contends warrant reversal or modification of the Consent Order;
- g. A statement of the rules or statutes the petitioner contends require reversal or modification of the Consent Order; and
- h. A statement of the relief sought by the petitioner, stating precisely the action petitioner wishes the Department to take with respect to the Consent Order.

The petition must be filed (received) at the Department's Office of General Counsel, 3900 Commonwealth Boulevard, MS# 35, Tallahassee, Florida 32399-3000 or received via electronic correspondence at Agency_Clerk@floridadep.gov, within 21 days of receipt of this notice. A copy of the petition must also be mailed at the time of filing to the Division Office at 2600 Blair Stone Road, MS 3500, Tallahassee, Florida 32399. Failure to file a petition within the 21-day period constitutes a person's waiver of the right to request an administrative hearing and to participate as a party to this proceeding under Sections 120.569 and 120.57, F.S. Before the deadline for filing a petition, a person whose substantial interests are affected by this Consent Order may choose to pursue mediation as an alternative remedy under section 120.573, F.S. Choosing mediation will not adversely affect such person's right to request an administrative hearing if mediation does not result in a settlement. Additional information about mediation is provided in Section 120.573, F.S. and Rule 62- 110.106(12), Florida Administrative Code.

27. Rules referenced in this Order are available at <https://floridadep.gov/ogc/ogc/content/rules>.

28. The undersigned certifies that they, are authorized and empowered to negotiate, enter

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into, and execute, in the name and on behalf of the Respondent, any agreements, documents, instruments, and certificates involving and including this Order entered into between Respondent and the Department without limitation.

FOR THE RESPONDENT, North Florida Rock, LLC.:



Date: 01-29-2026

Name: Cory Danner

Title: President

DONE AND ORDERED this 4th day of February, 2026, in Leon County, Florida.

STATE OF FLORIDA DEPARTMENT
OF ENVIRONMENTAL PROTECTION



Matthew Knoll
Deputy Director
Division of Water Resource Management

Filed, on this date, pursuant to section 120.52, F.S., with the designated Department Clerk, receipt of which is hereby acknowledged.



Clerk

February 4, 2026

Date

Copies furnished to:
Lea Crandall, Agency Clerk
Mail Station 35